

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 4, 2025

TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 14	24CV446537	Yolanda Martinez vs Stanford Health Care et al	Motion to Compel Defendants' unopposed motion for an order compelling Plaintiff to provide code compliant, objection free, verified discovery responses to Form Interrogatories, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One, is GRANTED. Plaintiff shall provide such responses within 15 days of service of the final order. Defendants unopposed request that admissions be deemed admitted is GRANTED. The Court "shall" impose monetary sanction against the losing party on the motion to compel unless it finds that party acted "with substantial justification" or other circumstances render the sanction "unjust." (Code of Civil Proc. § 2031.300(c).) Also, "It is mandatory that the court impose monetary sanction ... on the party or attorney, or both, whose failure to serve a timely response to requests for admissions necessitated" the filing of a motion to deem requests admitted. (Code of Civ. Proc. § 2033.280(c).) The Court orders that Plaintiff pay monetary sanctions in the amount of \$1,560.00 to Defendants within 30 days of the date of service of the final order. Defendants to prepare the final order within 10 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
LINE 15	21CV382079	Debt Management Partners, Llc vs Erica Gutierrez	Hearing: Claim of Exemption The claim of exemption is DENIED. The Court finds that Gutierrez’s financial statement shows sufficient non-exempt funds to satisfy the withholding. Gutierrez has not established that anything more than her proposed amount to be withheld is unreasonable (CCP § 706.123). In addition, the Court agrees with the judgment creditor that Gutierrez’s monthly income appears understated, expenses for clothing and laundry/cleaning appear excessive, and that the present judgment takes priority over those other generalized debts such as “monthly bill c cards”.
LINE 16	21CV390568	Jeff Taylor vs Ford Motor Company	Motion to Amend Complaint Ctrl Click (or scroll down) on Line 16 for tentative ruling.
LINE 17	24CV452949	STEELFAB, INC vs JIM MYERS & SONS, INC. et al	Hearing: Pro Hac Vice Counsel The unopposed Application of Cory J. Taylor to Appear Pro Hac Vice is GRANTED. Counsel to submit a proposed order within 10 days of the date of the hearing.

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